

Arshad Hussain v. Uttar Pradesh Power Corporation Limited

High Court of Judicature at Allahabad · Division Bench · 2 January 2020 · Writ-C No. 43002 of 2019 · Writ-C No. 43002 of 2019 · **Writ disposed; consumer to object before EE; s.127 appeal preserved.**

HEADNOTE

A writ seeking to quash a UPPCL demand notice and recovery citation, on the plea that the provisional assessment and inspection report were not served and the Supply Code was not followed, is disposed of without a merits decision. The consumer may obtain those documents from the Executive Engineer, must appear with objections, and a speaking final order is to follow; coercive recovery is stayed for a short period. Any grievance against the final order is left to the statutory appeal under section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Arshad Hussain challenged before the Allahabad High Court a demand notice dated 22 January 2019 and a recovery citation dated 4 December 2019 issued by officers of Uttar Pradesh Power Corporation Limited. He alleged that the licensee was taking coercive recovery without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005, and that copies of the provisional assessment order and the inspection report had never been served on him.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to final assessment and section 127 appeal

HOLDING

A writ against a demand notice and recovery citation, where the consumer alleges non-service of the provisional assessment and inspection report, is disposed of by directing the consumer to obtain those documents, appear before the Executive Engineer with objections, and receive a speaking final order, with a short stay of coercive recovery; any further grievance against that final order is left to the statutory appeal under section 127 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 The Court did not quash the demand or recovery citation and did not decide the Supply Code challenge; it directed a speaking final order on the consumer's objections and relegated any further grievance to the section 127 appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE AND RECOVERY CITATION WERE ISSUED WITHOUT FOLLOWING THE U.P. ELECTRICITY SUPPLY CODE, 2005, OR WITHOUT SERVICE OF THE PROVISIONAL ASSESSMENT AND INSPECTION REPORT

Left to the Executive Engineer's speaking final order on the consumer's objections. ¶ 1